

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, April 12, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28549 against Police Officer Gregory Danca Tax Registry No. 954697. The case was conferenced on April 2, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the dismissal of the charges in return for the recommended penalty of a Command Discipline Schedule (A) and the forfeiture of three (3) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

DISAPPROVED

JUN 24 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2023-28549

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DANCA	FIRST GREGORY	M.I. A	COMMAND 107 PRECINCT
SHIELD NO. 20062	TAX REGISTRY NO. 954697	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2013	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Gregory DANCA, on or about January 18, 2022, at approximately 2030, while assigned to 107 PCT and on duty, in the vicinity of 143rd Street and 86th Avenue, Queens County, abused their authority as a member of the New York City Police Department, in that PO DANCA stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 3.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Gregory Danca, on or about January 18, 2022, at approximately 2030, while assigned to 107 PCT and on duty, in the vicinity of 143rd Street and 86th Avenue, Queens County, abused their authority as a member of the New York City Police Department, in that PO DANCA frisked § 87(2)(b) without sufficient legal authority.	DISMISSED	
3 . Police Officer Gregory Danca, on or about January 18, 2022, at approximately 2030, while assigned to 107 PCT and on duty, in the vicinity of 143rd Street and 86th Avenue, Queens County, abused their authority as a member of the New York City Police Department, in that PO DANCA failed to	DISMISSED	

IX Brannino
FIRST DEPUTY COMMISSIONER

6/10/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

6/24/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28549
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DANCA	FIRST GREGORY	M.I. A	COMMAND 107 PRECINCT
SHIELD NO. 20062	TAX REGISTRY NO. 954697	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2013	
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SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
explain to § 87(2)(b) the reason for stopping them without sufficient legal authority. 4 . Police Officer Gregory Danca, on or about January 18, 2022, at approximately 2030, while assigned to 107 PCT and on duty, in the vicinity of 143rd Street and 86th Avenue, Queens County, abused their authority as a member of the New York City Police Department, in that they took a photograph(s) recording(s) of § 87(2)(b) identification with PO DANCA's personal electronic digital.	DISMISSED	

DC Brattino
FIRST DEPUTY COMMISSIONER

6/10/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

6/24/24
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 14, 2024

Re: CCRB Case No. 202200362 (Incident Date: January 18, 2022) involving Police Officer Gregory Danca, Tax No. 954697 (DADS No. 2023-28549)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Gregory Danca and has determined that not all of his actions warrant the proposed penalty.

The Police Commissioner has determined that with respect to Specification Nos. 1, 2, and 3, the negotiated penalty of the dismissal of the Charges and Specifications and the issuance of a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days is appropriate. With respect to the misconduct in Specification No. 4, the Police Commissioner determined that such allegation was inappropriately analyzed by the CCRB. As noted by the Assistant Deputy Commissioner of Trials Jeff Adler during the settlement conference, the manner in which CCRB analyzed this specification was not what was envisioned during the creation of the Disciplinary System Penalty Guidelines.¹ When determining a penalty for this specification, CCRB analyzed this specification under the "Improper Recording of a Police Incident" section of the Disciplinary System Penalty Guidelines. The Police Commissioner has determined, however, the underlying misconduct was a violation of the Department's general prohibition against members using their personal electronic devices while on duty. Furthermore, the Police Commissioner has determined this allegation falls outside the purview of the CCRB. However, he acknowledges that said misconduct violates department policy and will therefore be addressed by administering Formalized Training.

Therefore, the Police Commissioner intends to dismiss all the Charges and Specifications in this matter and direct the issuance of a Schedule "A" Command Discipline with the forfeiture of three (3) penalty days for Specification Nos. 1, 2 and 3. Separate and apart and with respect to Specification No. 4, the Police Commissioner intends to direct that Police Officer Danca receive Formalized Training in Patrol Guide Procedure 219-32 (Department Mobile Digital Devices).

¹ NYPD Deputy Commissioner of Trials Settlement Conference transcript page 9 (Police Officer Gregory Danca).

Sincerely,

Handwritten signature of Anthony S. Marino, appearing as 'ASMP'.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 20, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202200362 (Incident Date: January 18, 2022) involving Police Officer Gregory Danca, Tax No. 954697 (DADS Bo. 2023-28549).

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 14, 2024. Pursuant to the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

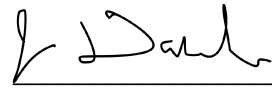
On April 2, 2024, in front of Assistant Deputy Commissioner Jeff Adler, Police Officer Danca accepted the findings of substantiation on all charges in return for a recommendation of the issuance of a Command Discipline Schedule A along with the forfeiture of three (3) vacation days.

Deputy Chief Marino’s letter states that you agree with the CCRB’s recommendation with regards to Specifications 1, 2 and 3. However, regarding Specification 4, Deputy Chief Marino states that you determined that the allegation that Officer Danca used his personal electronic device to take a photo of the civilian’s identification card is outside the FADO jurisdiction of the CCRB. The CCRB disagrees with this determination. New York State courts have held that the CCRB is permitted to define the extent of an abuse of authority and have given deference to the CCRB’s analysis in this regard. As stated in *Matter of Lynch v. New York City Civilian Complaint Review Bd.*, 206 A.D.3d 558, 560-561 (1st Dept. 2022), *lv. denied* 39 N.Y.3d 902, “Given the CCRB’s expertise in studying and investigating police disciplinary matters, we defer to its interpretation of the term “abuse of authority,” unless that definition is irrational, unreasonable, or inconsistent with the governing statute.” The CCRB’s determination that the wrongful use of a personal electronic device to take an image of a civilian’s identification constitutes an abuse of authority is not irrational, unreasonable, or inconsistent. It

should also be noted that Officer Danca persisted with this action even when it was pointed out to him *by the civilian* that it was improper of him to do so. The civilian's concern over the fact that an image of his identification was being taken by an officer's personal phone illustrates the reasoning behind why there is a prohibition against members of service using the personal electronic devices while on duty, and justifies viewing Officer Danca's actions as an abuse of his authority.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Danca Officer on all charges.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board